

113	Ramos vs. Ascent Aerospace, LLC 2024-01416819	Motion to Approve PAGA Settlement Plaintiff Francisco Ramos Jr.’s Motion for Approval of PAGA Settlement is CONTINUED to October 8 at 2:00 p.m. in Department CX102 in order to give Plaintiff’s counsel an opportunity to address the issues identified below. This is a PAGA-only action. On 8/5/2024, Plaintiff Francisco Ramos Jr. filed a class action complaint against Defendant Ascent Aerospace LLC, alleging 14 causes of action for various Labor Code violations and unfair competition. (ROA #2.) On 10/9/2024, Plaintiff filed the operative first amended complaint (FAC), adding a cause of action for PAGA penalties. (ROA #15.) Then, on 9/25/2025, Plaintiff filed a request for dismissal of his individual and class claims against Defendant without prejudice. (ROA #54.) The Court approved and granted the dismissal, entering the order on 10/3/2025. (ROA #62.) On 1/30/2026, Plaintiff filed the instant Motion for Approval of PAGA Settlement, and submitted for the Court’s review the PAGA Settlement Agreement and Release (“Settlement Agreement”) and proposed notice/cover letter to aggrieved employees that will accompany the payment to them. The motion seeks approval of the parties’ proposed settlement of Plaintiff’s PAGA claims for the non-reversionary gross settlement amount (GSA) of \$100,000. The Court concludes that an attorneys’ fee award totaling \$30,000 or 30% of the GSA, constituting a 0.51 multiplier of the lodestar amount, is fair, adequate, and reasonable for a settlement of this size, including considering the action’s contingent nature and the results achieved. The Court also concludes that litigation costs should not include overhead or nonrecoverable items such as postage. Therefore, the Court deducts from the requested amount \$19.45 for postage incurred on 10/5/2023 and 8/5/2024, and awards reasonable costs in the amount of \$12,590.55. Further, the Court has identified the following issues with the moving papers, which must be addressed by Plaintiff’s counsel before approval can be granted: 9. Although at ¶ 22, the Settlement provides that the allocation of the PAGA penalties between the LWDA and Aggrieved Employees will be 65% and 35% respectively, the Settlement at ¶¶ 13 and 16 provides for a 75%/25% allocation, which is inconsistent and incorrect. 10. The moving papers fail to provide the Aggrieved Employees’ estimated high and low individual recovery under the proposed settlement. 11. The Settlement Agreement includes an escalator clause. But this is a motion to have the settlement fully approved, and so a specific GSA must be approved upon the granting of this motion. At this point, the
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		parties should know or be able to determine the number of Aggrieved Employees and qualifying pay periods based on the PAGA Period. 12. The effective date of the release is before Defendant’s full funding of the GSA, given that the release is effective as of the Effective Date (i.e., the date on which the Court enters a Judgment on its Order Approving the PAGA Settlement), but Defendant need not fund the GSA until up to 30 days after the Effective Date. (Settlement, ¶¶ 11, 36, 45.) Plaintiff’s counsel must either explain why releasing the claims before settlement funds are fully paid is in the best interests of the Aggrieved Employees, or amend the settlement agreement to release claims only after Defendant has fully paid the settlement funds. 13. Paragraph 45 of the Settlement is phrased to provide a direct release by the State of California, but the State is not directly participating in this lawsuit. Therefore, this provision of the Settlement should be amended to read: “Plaintiff and Aggrieved Employees (on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, <i>as well as on behalf of the State of California</i>), shall be deemed . . .” (italics added for emphasis). 14. The Settlement notes that “The Parties also entered into a separate individual settlement agreement addressing the general release Plaintiff is providing to Defendant and the related consideration.” (Settlement, ¶ 35.) Plaintiff has not provided a copy of this separate individual settlement agreement for the Court’s review as part of evaluating whether the instant PAGA settlement is fair, adequate, and reasonable. 15. Plaintiff’s counsel must attest as to whether there is a fee-splitting agreement with any other counsel, or confirm there is none. Plaintiff’s counsel must also provide a revised notice/cover letter to aggrieved employees that will accompany the payment to them, so that its terms are consistent with the resolution of the issues identified above. Plaintiff’s counsel must also provide a revised [Proposed] Order Approving PAGA Settlement and Judgment with the following revisions: 12. The proposed order and judgment should be revised so as to be consistent with the resolution of the issues identified above, including but limited to reflecting the specific award and disbursement amounts set forth in this order. 13. Attorney information must be deleted from the caption page. 14. The proposed order and judgment should identify the Settlement Agreement by its actual name. 15. The proposed order and judgment should reference by full name and ROA number the declaration(s) to which the Settlement Agreement and any amendments thereto, as well any other referenced exhibits, are attached. 16. The proposed order and judgment should state that the Court’s continuing jurisdiction is pursuant to California Code of Civil Procedure section 664.6.
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114	Rodriguez vs. Alamitos Enterprises, LLC 2023-01349555	Motion for Approval of PAGA Settlement The Court has reviewed the supplemental materials provided by Plaintiff's Counsel and finds that they mostly adequately address the previously identified issues. Accordingly, Plaintiff Aileen Rodriguez's Motion for Approval of PAGA Settlement is CONDITIONALLY GRANTED, pending the resolution of the issues identified below. This is a PAGA-only action. On 9/13/2023, Plaintiff Aileen Rodriguez filed a PAGA complaint against Defendants Alamitos Enterprises, LLC and The Alamitos Group, alleging a single cause of action for PAGA penalties. (ROA #2.) Defendant Alamitos Enterprises, LLC (erroneously sued as The Alamitos Group) answered on 11/22/2023. (ROA #15.) On 12/4/2025, Plaintiff filed the instant Motion for Approval of PAGA Settlement, and submitted for the Court's review the Private Attorney General Act Settlement Agreement and Release ("Settlement Agreement") and proposed notice/cover letter to aggrieved employees that will accompany the payment to them. The motion seeks approval of the parties' proposed settlement of Plaintiff's PAGA claims for the non-reversionary gross settlement amount (GSA) of \$500,000.